

in his Reports, they foresaw the consumption of "length of time, not so much for your learned council to be prepared, for that is almost done already, but because he himself, no doubt, will crave time of advice, to peruse his own books, and to see whether the collections be true, and that he be justly charged, and then to produce his proofs that those things which he shall be charged with were not conceits and singularities of his own, but the acts of court and other like things, tending to excusation or extenuation, wherein we do not see how the time of divers days, if not of weeks, can be denied him." And they further informed his Majesty, "that the absence of a Chief Justice, though it should be for a whole term, as it hath been often upon sickness, can be no hindrance to common justice; for the business of the King's Bench may be dispatched by the rest of the judges, his voice in the star chamber may be supplied by any other judge that my Lord Chancellor shall call, and the trials by *nisi prius* may be supplied by commission."

Upon this opinion, James resolved to still farther examine Coke before the Privy Council, and cause him to take into consideration those several points in his reports which most annoyed the court.

There is, in the Harleian manuscripts, a paper addressed to Sir Francis Bacon, which contains the King's sentiments and reasons for coming to this resolution, as well as a tacit confession, that hitherto, neither the King nor his Privy Council had made any satisfactory progress in the improvement of the disrelished reports. Their great author, in his replies, evidently scorned the ignorance of his critics.

In this paper, probably written about the 10th of October, 1616, the King commenced by laying down certain rules for the further progress of this affair, and to this end told his servants "that although the discharging and removing of his Majesty's officers and servants, as well as the choice and advancement of men to place, be no council chamber matters, but belong to his Majesty's princely will and secret judgment, yet his Majesty will do his council this honour, that in his resolutions of that kind his council shall know them first before others, and shall know them, accompanied by their causes, making, as it were, a private manifesto, or revealing of himself to them without parables.

"Then to have the report of the Lords, touching the business of the Lord Coke, and the last order of the Council read.

* No. 7006.

“ That being done, his Majesty further willeth to declare, that he might, upon the same three grounds, in the order mentioned of deceit, contempt, and slander of his government, very justly have proceeded then, not only to have put him from his place of Lord Chief Justice, but to have brought him in question in the Star Chamber, which would have been his utter overthrow; but then his Majesty was pleased for that time only to put him off from the council table, and from the public exercise of his place of Chief Justice, and to take farther time to deliberate.

“ That in his Majesty’s deliberation, besides the present occasion, he had in some things looked back to the Lord Coke’s former carriage, and in some things looked forward to make some farther trial of him.

“ That for things past, his Majesty had noted in him a perpetual turbulent carriage, first towards the liberties of the Church and estate ecclesiastical, towards his prerogative royal and the branches thereof, and likewise towards all the settled jurisdictions of all his other courts, the High Commission, the Star Chamber, the Chancery, the Provincial Councils, the Admiralty, the Duchy, the Court of Requests, the Commission of Inquiry, the new boroughs in

Ireland ; in all which he had raised troubles, and new questions, and lastly in that which might concern the safety of his royal person, by his exposition of the laws in cases of high treason.

“ That beside the actions themselves, his Majesty, in his princely wisdom, hath made two special observations of him, the one that he having in his nature not one part of those things which are popular in men, being neither civil nor affable, nor magnificent, he hath made himself popular, by design only, in pulling down government. The other, that whereas his Majesty might have expected a change in him, when he made him his own by taking him to be of his council ; it made no change at all, but to the worse ; he holding on all this former channel, and running separate courses from the rest of the Council, and rather busying himself in casting fears before his Council concerning what they should not do, than joining his advice what they should do.

“ That his Majesty, desirous yet to make a further trial of him, had given him the summer vacation to reform his reports, wherein there be many dangerous conceits of his own, uttered for law, to the prejudice of his crown, parliaments, and subjects, and to see whether by this he would in any part redeem his fault : but that his

Majesty hath failed of the redemption he desired, but hath met with another kind of redemption from him which he little expected ; for as to the reports, after three months' time and consideration, he hath offered his Majesty only five animadversions, being rather a scorn than a satisfaction to his Majesty ; whereof one was, that in the prince's case he hath found out the French statute, which was Fitz-Aisné, whereas the Latin was *Primogenitus* ; and so the Prince is Duke of Cornwall in French, and not Duke of Cornwall in Latin ; and another was, that he had sent Montagu to be Chief Justice, in Henry the Eighth's time, when it should have been in Edward the Sixth's, and such other stuff ; not falling upon any of those things which he could not but know were offensive.

“ That hereupon his Majesty thought good to refresh his memory, and out of many cases, which his Majesty caused to be collated, to require his answer to five, being all such as were expatiations of his own, and no judgments ; whereunto he returned such an answer as did neither justify himself or elude the matter ; so, as his Majesty seeth plainly, *antiquum obtinet*.”

On the seventeenth of October the Lord Chancellor, with the Attorney-General Bacon, and others of the Council, summoned Sir Ed-

ward Coke before them, and delivered to him in writing the cases in his Reports, to which the King objected; and on the twenty-first, four days afterwards, Coke delivered in his answers, which were on the following day transmitted to the King by the Chancellor, with the following letter, dated from York House, October 22, 1616, both copied from the originals by Stephens:—*

“ To the King’s Most Excellent Majesty,—

“ According to your Majesty’s directions signified unto me by Mr. Solicitor, I called the Lord Chief Justice before me on Thursday, the 17th inst, in the presence of Mr. Attorney, and others of your learned council. I did let him know your Majesty’s acceptance of the few animadversions which, upon review of his own labours, he had sent, though fewer than you expected, and his excuses fewer than you expected, as namely in the Prince’s case, the want of the original in French, as though if the original had been *primogenitus* in Latin, then he had not in that committed any error.

“ I told him, farther, that because his books were many, and the cases, as he saith therein,

* Bacon’s Works, vol. vi, p. 397.

five hundred, your Majesty, out of your gracious favour, was pleased that his memory should be refreshed ; and that he should be put in mind of some passages, dispersed in his books, which your Majesty, being made acquainted with, doth as yet distaste, until you hear his explanation and judgment concerning the same ; and that out of many, some few should be selected, and that at this time he should not be pressed with more, and these few not to be special and principal points of the cases, which were judged, but things delivered by discourse, and as it were by expatiation, which might have been spared and foreborn without prejudice to the judgment in the principal cases.

“ Of this sort Mr. Attorney and Mr. Solicitor made choice of five specially, which were read distinctly to the Lord Chief Justice ; he heard them with good attention and took notes thereof in writing ; and lest there might be any mistaking either in the declaring thereof to him, or in his misconceiving of the same, it was thought good to deliver unto him a true copy, upon consideration whereof, and upon advised deliberation, he did yesterday in the afternoon return unto me in the presence of all your learned Council a copy of the five points before mentioned, and his answer at large to the same,

which I make bold herewith to present to your Majesty, who can best discern and judge of this little which is done, and what may be expected of the multiplicity of other cases of the like sort, if they shall be brought to further examination.

“ All that I have done in this hath been by your Majesty’s commandment and direction, in presence of all your learned council, and by the special assistance and advice of your attorney and solicitor.

“ I know that obedience is better than sacrifice, for otherwise I would have been an humble suitor to your Majesty to have been spared, in all service, concerning the Lord Chief Justice. I thank God, I forget not the fifth petition, ‘ Dimitte nobis debita nostra sicut,’ etc.; but withal I have learned this distinction; there is, first, ‘ Remisio vindictæ; 2. Remisio pœnæ; 3. Remisio judicii;’ the two first I am past, and have freely and clearly remitted. But the last, which is of judgment and discretion, I trust I may in christianity, and with good conscience, retain, and not to trust too far, &c.

“ I must beseech your Majesty’s favour to excuse me for all that I have before written, but specially for this last needless passage, wherein I fear your Majesty will not allow me to play the divine, without learning and out of season, and

so with my continual prayers to God to preserve your Majesty with long, healthful, and happy life, and all earthly and heavenly felicity, I rest your Majesty's humble and faithful subject and servant,

“ T. ELLESMERE, Canc.

Accompanying this letter was the paper of questions propounded to Coke by the Privy Council, and his answers, which were as follow:—

“ Questions demanded of the Lord Chief Justice of the King's Bench by his Majesty's commandment.

“ 1. In the case of the Isle of Ely, whether his Lordship thinks that the resolution there spoken of to be law, that a general taxation upon a town to pay so much towards the repair of the sea banks, is not warranted to be done by the commissioners of sewers; but that the same must be upon every particular person, according to the quantity of his land, and by number of acres and perches, and according to the portion and according to the profit which every person hath there. Lib. 10.

“ 2. In Darcy's case, whether his Lordship's judgment be as he reporteth it to be resolved; that the dispensation or license of Queen Eliza-

beth to Darcy to have the sole importation of cards, notwithstanding the statute of 3 Edward IV, is against law. Lib. 11.

“ 3. In Godfrey’s case, what he means by this passage, Some courts cannot imprison, fine and amerce, as ecclesiastical courts, before the ordinary, archdeacon, &c. or other commissioners, and such like, which proceed according to the canon or civil law. Lib. 11.

“ 4. In Dr. Bonham’s case, what he means by this passage, that in many cases the common law shall control acts of Parliament, and sometimes judge them to be merely void ; for when an act of Parliament is against common right and reason, the law shall control it and adjudge it void. Lib. 8.

“ 5. In Bagge’s case, to explain himself where he saith, that to the Court of King’s Bench belongs authority not only to correct errors in judicial proceedings, but other errors and misdemeanors extra judicial, tending to the breach of the peace, oppression of subjects, or to the raising of faction, controversies, debate, or to any manner of misgovernment, so no wrong or injury can be done, but that this shall be reformed or punished by due course of law. Lib. 11.”

To all these questions, Sir Edward Coke learn-

edly and elaborately replied, and that so successfully, that no attempt was made by Bacon to rejoin, nor did any of the other law officers venture to hazard a reply. They were angry, and silent.

The very attempt, however, to decry the legal knowledge of Coke, shows the spirit with which they were actuated, and the extremities to which they were reduced for an accusation; since, whatever inclination they might have to degrade him, it is quite clear, to every modern lawyer, that, to attack Coke on his law, was, of all attempts, the least likely to be attended with success; and Bacon, whatever were his other claims to pre-eminence, had no power here to contend successfully with Coke. We are quite justified, therefore, in the conclusion, that if a stronger ground of complaint could have been discovered, Bacon would not have readily made his onset in a legal argument.

Coke's replies may be seen at length in the report of the Chancellor Ellesmere to the King: but they are much too long to be inserted in this work: they were, however, unsatisfactory to the court, quite complete.*

Sir Edward Coke having thus answered the

* Bacon's Works, vol. vi, p. 397.